

RESOLUTION NO. 22021501

RESOLUTION OF THE BOARD OF TRUSTEES OF THE WEST VALLEY - MISSION
COMMUNITY COLLEGE DISTRICT DETERMINING THAT THE WEST VALLEY
COLLEGE MUSIC BUILDING AND THEATER BUILDING ARE CATEOGRICALLY
EXEMPT FROM THE CALIFORNIA ENVIRONMENTAL QUALITY ACT

WHEREAS, the West Valley-Mission Community College District recognizes that the Music Building at West Valley College will have significant educational service benefits to the District; to West Valley College students, faculty, and employees; and to the community; and

WHEREAS, on January 22, 2019, the West Valley – Mission Community College District secured adequate funding for the renovation project from State capital and local bond Measure W to proceed with the planning and implementation of the Music Building component and the Theater Building, which comprise the Performing Arts Center Project in conjunction with the District’s Facilities Improvement Program; and

WHEREAS, the West Valley-Mission Community College District has considered the application of the California Environmental Quality Act (“CEQA”) (Pub. Resources Code, § 21000 *et seq.*), and the CEQA Guidelines (Cal. Code Regs., tit. 14, § 15000 *et seq.*) to the approval of the Music Building and Theater Building components of the Performing Arts Center Project as described in Exhibit A; and

WHEREAS, the District has identified the appropriate categorical exemption (Class 2) that addresses the Performing Arts Center Project, including the Music Building and Theater Building; and

WHEREAS, the District has considered whether there are any known facts associated with the Performing Arts Center Project, including the Music Building and Theater Building or its location that, pursuant to section 15300.2 of the CEQA Guidelines, would give rise to circumstances or considerations that disallow reliance on these categorical exemptions, and has determined that no such facts exist; and

WHEREAS, the District has determined, more specifically, (i) that the on-campus location of the Project is not a “particularly sensitive environment” within the meaning of CEQA Guidelines section 15300.2, subdivision (a); (ii) that the Project, combined with successive projects of the same type in the same location, will not create a significant cumulative impact; (iii) that there are no unusual circumstances creating a reasonable possibility that the Project will have a significant effect on the environment due to unusual circumstances; (iv) that the Project will not result in damages to scenic resources within a highway officially designated as a state scenic highway; (v) that the location for the Project is not on a hazardous waste site included on a list compiled pursuant to Government Code section 65962.5; and (vi) that the Project will not cause any substantial adverse change in the significance of any historical resource; and

WHEREAS, the District has also considered whether the Performing Arts Center project, including the Music Building and Theater Building renovation and expansion, would cause any

significant effects relating to traffic, noise, air quality, or water quality, and has determined that no such effects would occur; and

WHEREAS, the District has determined that the Performing Arts Center Project, including the Music Building and Theater Building, is consistent with the City of Saratoga's General Plan or zoning designations for the West Valley College site; and

WHEREAS, the location of the Performing Arts Center, Project including the Music Building and Theater Building, is located within the City of Saratoga and is substantially surrounded by urban land uses; and

WHEREAS, the District has determined that the on-campus location of the Performing Arts Center, including the Music Building and Theater Building, can be adequately served by all required utilities and public services.

NOW, THEREFORE, BE IT RESOLVED by the Board of Trustees of the West Valley - Mission Community College District as follows:

1. The above recitals are true and correct, and Board hereby so finds.
2. The Board finds that the Performing Arts Center Project, including the new Music Building and the renovated and expanded Theater Building, on the West Valley College campus described in Exhibit A is categorically exempt from CEQA pursuant to the following exemptions: a) CEQA Guidelines Section 15302, permitting *Replacement and Renovation of Existing Buildings*, which identifies exemptions for replacement or renovated facilities or structures, not to exceed a 50% increase in capacity. The Performing Arts Center Project, including the Music Building and Theater Building, involves constructing a replacement building on the approximate site of the existing Music Building and Theater Building on the WVC campus, and which is zoned for the proposed use.
3. The Board directs the Chancellor or his designees to file the required CEQA Notice of Exemption ("NOE") with the State Office of Planning and Research.

APPROVED AND ADOPTED by the Board of Trustees of the West Valley - Mission Community College District this 15 day of February 2022, by the following vote on roll call:

AYES:

NOES:

ABSTAIN:

ABSENT:

President, Board of Trustees

ATTEST:

Secretary, Board of Trustees